

NOTICE OF LODGMENT
AUSTRALIAN COMPETITION TRIBUNAL

This document was lodged electronically in the AUSTRALIAN COMPETITION TRIBUNAL and has been accepted for lodgment pursuant to the Practice Direction dated 13 July 2026. Filing details follow and important additional information about these are set out below.

Lodgment and Details

Document Lodged:	Application to Tribunal for Review
File Number:	ACT 4 of 2026
File Title:	APPLICATION BY RACWA HOLDINGS PTY LTD
Registry:	VICTORIA – AUSTRALIAN COMPETITION TRIBUNAL



REGISTRAR

Dated: 5/10/2026 3:27 PM

Important information

This Notice has been inserted as the first page of the document which has been accepted for electronic filing. It is now taken to be part of that document for the purposes of the proceeding in the Tribunal and contains important information for all parties to that proceeding. It must be included in the document served on each of those parties.

FORM H

(regulation 17)

APPLICATION BY RACWA HOLDINGS PTY LTD FOR REVIEW OF AUSTRALIAN COMPETITION AND CONSUMER COMMISSION ACQUISITION DETERMINATION (MN-65005)

Commonwealth of Australia

Competition and Consumer Act 2010

In the Australian Competition Tribunal

File No.

Re: Application for review of an acquisition determination made by the Australian Competition and Consumer Commission under section 51ABZE(1) of the *Competition and Consumer Act 2010* (Cth)

Application for review

1. On 3 March 2026, Insurance Australia Group Limited (**IAG**) lodged a notification with the Australian Competition and Consumer Commission (**ACCC**) in accordance with s 51ABX of the *Competition and Consumer Act 2010* (Cth) (**CCA**) (the **Notification**) in relation to its proposed acquisition of 100% of the issued share capital in RAC Insurance Pty Limited (**RACI**) from RACI Pty Ltd (the **Proposed Acquisition**).
2. RACI Pty Ltd is a wholly owned subsidiary of RACWA Holdings Pty Ltd (**RAC Holdings**), which in turn is a wholly owned subsidiary of The Royal Automobile Club of WA Limited (**RAC**).
3. The transaction structure by which the acquisition is to take effect is a strategic alliance involving:
 - (a) a share sale deed dated 15 May 2025 between IAG, RACI Pty Ltd and RAC Holdings for the acquisition of 100% of the issued share capital in RACI;
 - (b) a long-term distribution agreement under which RAC Holdings will distribute general insurance products issued by RACI to RAC members

in Western Australia under the RAC brand – in other words, IAG does not acquire the RAC insurance distribution business;

- (c) a brand licence agreement between RAC Holdings, RACI and IAG under which the RAC brand will be licensed to RACI for the duration of the distribution agreement;
 - (d) a transitional services agreement between RAC Holdings and RACI under which RAC Holdings will provide certain services to RACI on a transitional basis for a limited period following completion; and
 - (e) a buyback deed between IAG and RACI Pty Ltd under which IAG will, in the circumstances set out in the buyback deed, provide RACI Pty Ltd with the option to acquire the business comprising one or more of the portfolios of products issued under the RAC brand pursuant to the distribution agreement.
4. The ACCC's acquisition case number for the Notification was MN-65005.
 5. The ACCC has determined under s 51ABZE(1) of the CCA that the Proposed Acquisition must not be put into effect (**Determination**). The Determination and the statement of reasons for making the Determination (dated 22 September 2026) was included on the acquisitions register on 23 September 2026. Pursuant to s 51ABZE(5) of the CCA, the Determination is therefore taken to have been made on 23 September 2026.
 6. RAC Holdings applies to the Australian Competition Tribunal under s 100C of the CCA for a review of the Determination.
 7. RAC Holdings' address is Level 5, 832 Wellington Street, West Perth, Western Australia 6005.
 8. RAC Holdings is not the notifying party in relation to the Notification. The notifying party was IAG.

Reasons for Dissatisfaction with the Determination and Relief Sought

9. RAC Holdings is dissatisfied with the Determination in respect of the Proposed Acquisition in the following respects:
 - (a) the Determination was not the objectively correct or preferable decision;

- (b) the ACCC determined under s 51ABZE(1) of the CCA that the Proposed Acquisition must not be put into effect on the basis of an incorrect conclusion that the Proposed Acquisition, if put into effect, would, in all the circumstances, have the effect, or be likely to have the effect, of substantially lessening competition in a market;
- (c) the applicable statutory criteria in ss 51ABZE(1), 51ABZE(2)(c), 51ABZE(3) and 51ABZH of the CCA provide that:
 - (i) the ACCC must not determine that the Proposed Acquisition must not be put into effect unless it is satisfied that the Proposed Acquisition, if put into effect, would, in all the circumstances, have the effect, or be likely to have the effect, of substantially lessening competition in any market (s 51ABZE(2)(c));
 - (ii) when assessing whether the Proposed Acquisition may be put into effect or must not be put into effect, the ACCC must have regard to the object of the CCA and all relevant matters, including the interests of consumers (ss 51ABZE(3) and 51ABZH(2)); and
 - (iii) when assessing whether the Proposed Acquisition may be put into effect or must not be into effect, the ACCC may have regard to the contract, arrangement or understanding pursuant to which the acquisition is to take place (s 51ABZH(3)(a)) and the commercial relationships of the parties to the acquisition (s 51ABZH(3)(c)); and
- (d) upon a proper application of the applicable statutory criteria in ss 51ABZE(1), 51ABZE(2)(c), 51ABZE(3) and 51ABZH of the CCA, the objectively correct or preferable decision is that:
 - (i) a mandatory precondition to the power to determine that the Proposed Acquisition must not be put into effect is not satisfied. In particular, the Tribunal should not be satisfied that the Proposed Acquisition, if put into effect, would, in all the circumstances, have the effect, or be likely to have the effect, of substantially lessening competition in any market; and

- (ii) accordingly it must be determined that the Proposed Acquisition may be put into effect.
- 10. The determination that RAC Holdings is seeking from the Tribunal is as follows:
 - (a) under s 100N(1)(a) of the CCA, the Determination be set aside; and
 - (b) under s 51ABZE(1) and s 100N(1)(b) of the CCA, a determination that the Proposed Acquisition may be put into effect.

Information and Documents

- 11. A copy of the statement of reasons for making the Determination that is included on the ACCC's public register (dated 22 September 2026) is at Attachment A as required by section 7-21(2)(b) of the Determination. RAC Holdings is not presently able to file the unredacted and non-public version of the statement of reasons given the confidentiality obligations applying to that document.
- 12. RAC Holdings will provide a concise statement in accordance with s 7-22(2) of the *Competition and Consumer (Notification of Acquisitions) Determination 2025* (Cth).

Waiver of fees for Tribunal Review

- 13. RAC Holdings seeks an order pursuant to s 7-23(7) of the *Competition and Consumer (Notification of Acquisitions) Determination 2025* (Cth) that only one fee is payable in respect of this review application and the review application filed by IAG on 1 October 2026, because in circumstances where the target, RACI, is a wholly owned subsidiary of RAC Holdings and both applications relate to the same acquisition determination and seek the same relief:
 - (a) the same fee would otherwise be payable in respect of each application;
 - (b) the relationship between RAC Holdings and IAG is such that it is reasonable to treat the applications of RAC Holdings and IAG as relating to the same applicant; and
 - (c) it would be convenient to hear both applications at the same time.

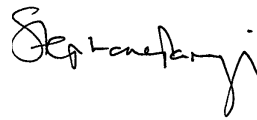
Address for service

14. RAC Holdings' address for service for the purpose of regulation 21 of the *Competition and Consumer Regulations 2010* (Cth) is:

c/o Stephanie Panayi
Herbert Smith Freehills Kramer
ANZ Tower, 161 Castlereagh Street
Sydney NSW 2000 Australia
stephanie.panayi@hsfkramer.com

Dated: 5 October 2026

Signed on behalf of the applicant, RAC Holdings



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Stephanie Panayi
Herbert Smith Freehills Kramer
Solicitors for the applicant, RAC Holdings